

Ram Pratap Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 27 February 2020 · WRIT - C No. 2696 of 2020 · **Writ disposed; billing dispute relegated to Executive Engineer under clause 6.5.**

HEADNOTE

A consumer's writ challenging an electricity bill and demand notice dated 25 September 2018 was not decided on merits. The Division Bench held that the petitioner may approach the Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005. If approached within one week, the Executive Engineer is to consider the claim and pass an appropriate order within three weeks in accordance with law. Coercive action on the demand was stayed for four weeks.

FACTUAL SUMMARY

Ram Pratap Singh, claiming to be an electricity consumer, filed a writ petition against the State of Uttar Pradesh and distribution-licensee officers, challenging an electricity bill and a demand notice dated 25 September 2018 issued by the Executive Engineer. After successive listings for instructions, the Division Bench on 27 February 2020 heard counsel for the petitioner, the State, and the licensee on whether the billing dispute should be examined in writ jurisdiction.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute — representation to Executive Engineer

HOLDING

A consumer disputing an electricity bill and demand notice issued by the Executive Engineer is to approach that officer under clause 6.5 of the Electricity Supply Code, 2005. If the petitioner so approaches within one week, the Executive Engineer shall consider the claim and pass an appropriate order within three weeks in accordance with law; no coercive action on the 25 September 2018 demand shall be taken for four weeks. The Court did not decide the bill on merits. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy The writ on a disputed bill and demand notice was not decided on merits; the consumer was directed to the Executive Engineer under clause 6.5. ¶ 1

clause-6.5-statutory-remedy-disputed-bill Clause 6.5 was treated as the statutory forum for the petitioner's challenge to the electricity bill and demand notice dated 25.09.2018. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL AND DEMAND NOTICE DATED 25.09.2018

Left to the Executive Engineer under clause 6.5. ¶ 1